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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**STATE’S OPPOSITION TO
DEFENDANT’S MOTION TO
CLASSIFY MOTION TO EXCLUDE
STILL PHOTOGRAPHERS, TV
CAMERAS AND MICROPHONES
FROM THE COURTROOM AS
PRIVATE**

Case No. 251403576

Judge Tony F. Graf, Jr.

The State opposes Defendants’ Motion to Classify Motion to Exclude Still Photographers, TV Cameras and Microphones from the Courtroom as Private (Dkt. 310). Yet again, Defendant has not rebutted the presumption that the filing should be public.

ARGUMENT

By now, this Court is well aware of the presumptively public nature of Defendant’s motion and the standard that Defendant must satisfy to overcome that presumption. *See*

Utah Code Jud. Admin. R. 4-202.02(1) & (2)(f); *id.* R. 4-202.04(6); *see also State v. Allgier*, 2011 UT 47, ¶¶ 10, 14-16, 258 P.3d 589. Defendant has not rebutted the presumption with respect to his Motion to Exclude Cameras.

The fact that the motion cites already public information favors maintaining the motion’s presumptively public status, not restricting access to it. *See Allgier*, 2011 UT 47, ¶ 17 (noting that already public nature of information contained in court filing “greatly diminished” any interest in protecting the document).

As for references in the motion to (1) existing filings that are currently classified as private, and (2) public information that the defense believes should have remained private, the defense can file a public version of the motion that redacts those references. *See Utah Code Jud. Admin. R. 4-202.04(6)(C)* (requiring courts to consider “reasonable alternatives to closure”).

Moreover, and as explained in the State’s opposition to the Motion to Exclude, whether the Court should restrict media access to these proceedings is an issue of significant public import that should be publicly litigated.

CONCLUSION

For the foregoing reasons, the Court should deny the motion.

Dated January 30, 2026.

Utah County Attorney’s Office

s/ Christopher D. Ballard
Christopher D. Ballard
Deputy Utah County Attorney

Counsel for Plaintiff

CERTIFICATE OF SERVICE

I certify that on January 30, 2026, I filed the foregoing **STATE’S OPPOSITION TO DEFENDANT’S MOTION TO CLASSIFY MOTION TO EXCLUDE STILL PHOTOGRAPHERS, TV CAMERAS AND MICROPHONES FROM THE COURTROOM AS PRIVATE** through the court’s electronic filing system, which served a copy on all counsel of record. I also emailed a copy to counsel for the interested news media as follows:

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